

		Request No. 30: Plaintiff is to provide a verified, supplement response and produce any responsive documents subject to the redaction of any unrelated transactions on the bank statements. Defendant to give notice.
8	CSU Fullerton Auxiliary Services Corporation vs. Cappuccio 30-2022- 01288782-CU- OR-NJC	Plaintiff's Motion to Tax Costs Plaintiff CSU Fullerton Auxiliary Services Corporation's motion to strike costs from is GRANTED. <u>Item 10: Attorney Fees:</u> Plaintiff moves to strike Defendant's request for \$1,050 in attorney fees on the grounds the Judgment issued by the Court on 12-19-24 did not award fees. Pursuant to Code of Civil Procedure section 1033.5, subdivision (a)(10), attorney fees are allowable as costs under section 1032 when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).) Attorney fees allowable as costs pursuant to contract "shall be fixed either upon a noticed motion or upon entry of a default judgment, unless otherwise provided by stipulation of the parties." (<i>Id.</i>, subd. (c)(5)(A).) Plaintiff has shown the University Gables Ground Lease ("Lease") provides for the recovery of attorneys' fees by the prevailing party. The Lease provides: "In the event that either Landowner or Homeowner brings suit against the other to enforce its rights under this Ground Lease, the prevailing party shall be entitled to recover from the other reasonable attorney's fees to be fixed by the court." (Opp., Ex. A, ¶ 19.4.) Since the contractual fees are not fixed, a noticed motion is required to recover fees. Defendant has not filed a noticed motion for attorney fees. <u>Item 16: Other:</u> The Other costs Defendant seeks to recover are: (a) trial transcript costs of \$505; and (2) monetary sanctions of \$1,522.50 paid by Defendant to Plaintiff. "[S]ection 1033.5, subdivision (a)(9) provides that transcripts of court proceedings ordered by the court are allowable. Nevertheless, the Legislature expressly prohibited the recovery of costs for transcripts of court proceedings not ordered by the court under subdivision (b)(5)." (<i>Segal v. ASICS Am. Corp.</i> (2022) 12 Cal.5th 651, 666.) Trial transcripts were not ordered by the Court. As to monetary sanctions, Defendant seek to recover \$1,522.50 which she paid to Plaintiff in connection with a Motion to Compel

		Further Responses to Form Interrogatories. (Price Decl., ¶ 5, Ex. 1.) Previously paid monetary sanctions are not allowable costs. Plaintiff to give notice.
9	DI Overnite Investments, LLC vs. Nabal 30-2024- 01393386-CU- BT-CJC	Cross-Defendants' Demurrer to First Amended Cross-Complaint Cross-Defendants DI Overnite Investments, LLC (DIO), Joseph Varraveto (Varraveto), Renaissance Ventures LLC (Renaissance), and Douglas M. Garamoni (Garamoni) (collectively Cross-Defendants) Demurrer to the First Amended Cross-Complaint is STAYED pending the resolution of DIO's bankruptcy. The allegations against DIO are inextricably intertwined with those against Varraveto, Renaissance, Garamoni. Nabal alleges they participated in a scheme to terminate him, extorted him, and were involved in racketeering. Nabal alleges DIO and the other Cross-Defendants were acting in concert, thus, there is a substantial risk for inconsistent judgment should there be two trials. Plaintiffs' Motion to Post Bond and Further Stay the First Amended Cross-Complaint Until Such Time as the Bond is Furnished Plaintiff/Cross-Defendant DI Overnite Investments, LLC's Motion for Defendant/Cross-Complainant Philip Nabal to Post a Bond is STAYED pending the resolution of DIO's bankruptcy. Motion to Strike (anti-SLAPP) scheduled for 5/16/2025 is STAYED. CMC scheduled for 6/5/2025 is VACATED. Status Conference re Bankruptcy scheduled for 4/23/2026 at 1:30 pm. All parties are ORDERED to file a Status Report 5 days prior. Clerk to give notice.
10	National Funding, Inc. vs. BTMB Consulting Services LLC 30-2024- 01412142-CU- BC-CJC	Plaintiff's Motion for Summary Judgment, or in the Alternative, Summary Adjudication Plaintiff National Funding, Inc.'s unopposed motion for summary judgment against defendants BTMB Consulting Services LLC dba Royalty Auto Spa and Ty Maggard is GRANTED. <u>First Cause of Action for Breach of Contract against BTMB Consulting Services LLC dba Royalty Auto Spa ("Borrower"):</u> "To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) plaintiff's performance of the contract or excuse for nonperformance, (3) defendant's